

**DEPARTMENT THREE
JUDGE STEPHEN GIZZI
707-207-7303
TENTATIVE RULINGS SCHEDULED FOR
TUESDAY, AUGUST 11, 2026**

The parties may appear via Zoom with the exception of trials, trial management conferences, order for examinations and mandatory settlement conferences. The information for the Zoom meeting is set forth below.

The tentative ruling shall become the ruling of the court unless a party desiring to be heard contacts the judicial assistant of the department hearing the matter by 4:30 p.m. on the court day preceding the hearing, and further advises that such party has notified the other side of its intention to request a hearing. A party requesting a hearing must notify all parties of the request to be heard by 4:30.

**DISCOVER BANK v. OCAMPO, ET AL.
Case No. CL25-03776**

Motion for Summary Judgment

TENTATIVE RULING

Plaintiff's unopposed motion for summary judgment is granted.

Defendant has not filed a separate statement disputing any of Plaintiff's facts, which alone justifies granting the motion. (Code Civ. Proc. § 437c(b)(3).)

Moreover, Plaintiff has presented evidence sufficient to meet its burden of proving each essential element of its breach of contract cause of action. (Code Civ. Proc. § 437c(p)(1); *Aguilar v. Atl. Richfield Co.* (2001) 25 Cal.4th 826, 853.) It is undisputed that Defendant entered into a credit card agreement with Plaintiff, Defendant used the credit account to charge for various goods, services, and cash advances, Plaintiff paid the vendors for all charges made, Defendant breached by failing to make payments as they became due, and Defendant owes an outstanding principal balance of \$2,659.12. (UMF 1, 3, 6-8.)

Judgment shall be entered against Defendant and in favor of Plaintiff for the unpaid balance of \$2,659.12 and court costs of \$297.61 as set forth in the memorandum of costs filed and served concurrently with Plaintiff's motion for a total of \$2,956.73.

STEVEN WILLIAMS v. H&S ENERGY, LLC et al.
Case No. CU23-01099

H&S's Motion for Summary Judgment

TENTATIVE RULING

Defendant H&S ENERGY, LLC ("H&S") moves for summary judgment against Plaintiff STEVEN WILLIAMS's complaint relevantly alleging negligence. Summarized, Plaintiff's complaint alleges that on May 8, 2021 he was a customer at the gas pumps at H&S's gas station at 223 Fairgrounds Drive in Vallejo when Defendants MARLON KING, KEMANDRE KING, and JOSHUA HAYLES robbed and shot him. Plaintiff alleges that H&S had a duty to protect its customers from third party crime and/or negligently undertook to provide security services.

Legal Standard. A defendant may move for summary judgment on the basis that the plaintiff cannot establish an element of his cause of action. (Code Civ. Proc., § 437c, subd. (o)(1).) A summary judgment motion is properly granted where the evidence in support of the moving party would be sufficient to sustain a judgment in his favor and his opponent does not show facts sufficient to present a triable issue of fact. (*Parker v. Twentieth Century-Fox Film Corp.* (1970) 3 Cal.3d 176, 181 (*Parker*).) The motion is not to be granted where any triable issue of material fact exists. (*Ibid.*) The affidavits of the moving party are strictly construed, and doubts as to the propriety of summary judgment should be resolved against granting the motion. (*Ibid.*) Reasonable inferences from the evidence must be drawn in the light most favorable to the opposing party. (*Syngenta Crop Protection, Inc. v. Helliker* (2006) 138 Cal.App.4th 1135, 1155.)

Affidavits, declarations, admissions, answers to interrogatories, depositions, and matters judicially noticed may all support a motion for summary judgment, provided they contain admissible evidence. (Code Civ. Proc., §§ 437c, subds. (b)(1), (d).) Allegations in a party's own pleadings may not satisfy deficiencies in evidence. (Code Civ. Proc., § 437c, subd. (p).) Allegations in an opposing party's pleadings may be considered evidence, however. (*Parker, supra*, 3 Cal.3d at p. 181.) Additionally, a defendant does not meet its burden of showing a plaintiff cannot establish an element merely by pointing out the absence of evidence; the defendant must show that the plaintiff both does not possess and cannot reasonably obtain evidence. (*Zipusch v. LA Workout, Inc.* (2007) 155 Cal.App.4th 1281, 1286-1287.)

Objections to Evidence. In ruling on a motion for summary adjudication the court need only rule on those evidentiary objections that it deems material to its disposition of the motion. (Code Civ. Proc., § 437c, subd. (q).)